03. Affidavit #1 of Marcus Tremblay (Page 1 of 8)

Supreme Court of British Columbia â New Westminster No. NW-250981

SYNTHETIC TEST FIXTURE - all parties, counsel, addresses and figures are fictional. Not for filing.

FORM 109 (RULE 22-2 (2))

No. NW-250981
New Westminster Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:
APEX STRUCTURES CORP.
PLAINTIFF / APPLICANT
AND:
CASCADE GENERAL CONTRACTING LTD.
DEFENDANT / RESPONDENT
AND:
PRO-TECH ROOFING SYSTEMS INC.
PROPOSED ADDED DEFENDANT / RESPONDENT

AFFIDAVIT #1 OF MARCUS TREMBLAY

I, Marcus Tremblay, Project Manager, of Suite 1800 - 1075 West Georgia Street, in the City of Vancouver,
in the Province of British Columbia, SWEAR (OR AFFIRM) THAT:

1. I am the Project Manager of the Plaintiff, Apex Structures Corp. ("Apex"), and as such I have personal
knowledge of the facts and matters deposed to in this affidavit, except where stated to be based on
information and belief, in which case I believe those facts and matters to be true.

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2. Apex was the owner and developer of the four-storey commercial building at 4418 Kingsway, Burnaby, British Columbia (the "Project"). Apex retained the Defendant, Cascade General Contracting Ltd. ("Cascade"), as general contractor under a written construction contract dated June 3, 2024 (the "Prime Contract").

3. Cascade subcontracted the roofing work to the Proposed Added Defendant, Pro-Tech Roofing Systems Inc. ("Pro-Tech") under a subcontract dated August 19, 2024. Now produced and shown to me and marked as Exhibit "A" to this my affidavit is the proposed Amended Notice of Civil Claim, which Apex seeks leave to file and which adds Pro-Tech as a defendant (the "Proposed Amended Claim").

4. Substantial performance of the Project was certified on March 28, 2025. Following that date, Apex’s tenants and building operators reported water entering the roof assembly along the north and east elevations.

5. On July 9, 2025, I sent a written notice to Cascade describing the water ingress and requesting remediation under the warranty in the Prime Contract. Cascade responded by directing Apex to contact Pro-Tech as the installer of the roof assembly. I did so, and Pro-Tech attended once in August 2025 to apply a temporary sealant at the north parapet. The water ingress did not stop.

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6. In September 2025, Apex retained Coastal Building Science Ltd. to investigate the roof assembly. The firm’s inspection was delayed until September 2026 because of the scheduling of the tenant fit-out work and the need to obtain access to the occupied suites. A copy of the inspection report dated September 22, 2026, is now produced and shown to me and marked as Exhibit "B" to this my affidavit (the "Engineering Report").

7. The Engineering Report identifies two probable causes of the water ingress: (a) inadequate membrane lap detailing at the north and east parapet terminations, and (b) undersized roof drains that do not meet the design flow for the roof area. In the Engineering Report’s opinion, both conditions are consistent with installation and design deficiencies in the roof assembly, and the report does not attribute either condition to tenant alterations.

8. Apex did not know, before receiving the Engineering Report, which party was responsible for the design of the roof drainage layout, or whether the drain sizing was a design or installation issue. Apex believes that the identification of those responsibilities could not reasonably have been made until the Engineering Report was completed.

9. Apex has incurred repair and remediation costs of approximately $412,000 to date in respect of the water damage, insulation replacement, and tenant fit-out restoration.

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Those costs continue to accrue,
and the Engineering Report recommends that the drainage system be replaced in full.

10. I am advised by counsel, and I verily believe, that the proposed amendments do not introduce a new
cause of action against Cascade, and that the amendments against Pro-Tech arise from the same roof
assembly and the same series of events as the existing claim.

11. No examinations for discovery have been scheduled in this action, and no trial date has been set. The
proposed amendments can be served and answered within the time limits in the Supreme Court Civil
Rules without any adjournment of a trial date.

SWORN BEFORE ME at the City of Vancouver,)
in the Province of British Columbia,)
this ____ day of November, 2026.)
)
)

_____

_____) MARCUS TREMBLAY

A Commissioner for taking Affidavits)
for British Columbia)

[Commissioner name, Commissioner stamp and expiry date to be completed by the commissioner]

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EXHIBIT "A" - PROPOSED AMENDED NOTICE OF CIVIL CLAIM (EXCERPT, SYNTHETIC)

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Supreme Court of British Columbia â New Westminster No. NW-250981

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This is Exhibit "A" referred to in the Affidavit #1 of MARCUS TREMBLAY,
sworn (or affirmed) before me at
the City of Vancouver, in the Province of British Columbia, this ____ day
of November, 2026.

_____

A Commissioner for
taking Affidavits for British Columbia

AMENDED NOTICE OF CIVIL CLAIM (Excerpt)

Parts 1-2: Plaintiff claims against the Defendants.

1. The Plaintiff, Apex Structures Corp., is a corporation incorporated
under the laws of British Columbia
and the owner of the Project.

2. The Defendant, Cascade General Contracting Ltd., was the general
contractor for the Project under the
Prime Contract dated June 3, 2024.

3. The Proposed Added Defendant, Pro-Tech Roofing Systems Inc., was the
roofing subcontractor for the
Project under a subcontract dated August 19, 2024.

4. The roof assembly installed by Pro-Tech has allowed water ingress since
March 28, 2025.

5. The Plaintiff claims against Pro-Tech for negligent design and

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installation of the roof assembly,
  including the membrane lap detailing at the north and east parapets and
the roof drainage sizing.

6. The Plaintiff claims against Cascade for breach of the Prime Contract
warranty, and for negligent
  supervision of the roofing work.

7. The Plaintiff claims damages of approximately $412,000 to date, and
continuing, together with interest
  and costs.

Parts 3-4: [Remainder of the proposed amended pleading omitted from this
synthetic excerpt.]

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EXHIBIT "B" - ENGINEERING INSPECTION REPORT (EXCERPT, SYNTHETIC)
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This is Exhibit "B" referred to in the Affidavit #1 of MARCUS TREMBLAY,
sworn (or affirmed) before me at
the City of Vancouver, in the Province of British Columbia, this ____ day
of November, 2026.

_____

A Commissioner for
taking Affidavits for British Columbia

COASTAL BUILDING SCIENCE LTD.

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Supreme Court of British Columbia â New Westminster No. NW-250981

Suite 600 - 1200 Hornby Street, Vancouver, BC V6Z 1W2

ROOF ASSEMBLY INSPECTION REPORT
Project: 4418 Kingsway, Burnaby, BC
Client: Apex Structures Corp.
Report date: September 22, 2026
Inspecting engineer: [Engineer name and P.Eng. number to be inserted]

1. SCOPE

Visual and infrared inspection of the roof membrane, parapet terminations, and roof drainage system on the north and east elevations, performed on September 9 and 10, 2026. Destructive testing was not performed.

2. FINDINGS

2.1 Membrane lap detailing at the north and east parapet terminations does not match the lap widths shown on the issued-for-construction roof detail. Laps appear to be approximately 50 mm narrower than specified at several locations.

2.2 Roof drains at the low points of the north and east roof areas have a clear outlet area below the calculated design flow for the tributary roof area. Ponding was observed within 4 hours of rainfall at both locations.

2.3 Staining consistent with water migration was observed on the ceiling of the third-floor tenant

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space at the north-east corner. No evidence of tenant alteration to the roof assembly was observed.

3. PROBABLE CAUSE

In our opinion, the water ingress is most probably caused by (a) inadequate membrane lap detailing and (b) undersized roof drains. Both conditions are consistent with installation and design deficiencies.

We cannot determine from the visual inspection alone whether the drain sizing originated in the design documents or in the installed outlets.

4. RECOMMENDATIONS

4.1 Replace the roof drains at the north and east low points with drains sized to the design flow.

4.2 Re-lap the membrane at the north and east parapet terminations to the issued-for-construction detail.

4.3 Carry out a flood test of the affected roof areas before reinstating the tenant fit-out finishes.

Signed: _____

[Engineer name, P.Eng.] - Coastal Building Science Ltd.